India Wind Energy Association & Anr vs Madhya Pradesh Elec. Reg. Commission & ... on 27 March, 2015

COURT-I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

APPEAL NO. 181 OF 2014 &
IA No. 296 of 2014

Dated: 27th March, 2015

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

In the matter of :

India Wind Energy Association & Anr. .... Appellant(s)
Versus
Madhya Pradesh Elec. Reg. Commission & Ors. ... Respondent(s)

Counsel for the Appellant(s) : Mr. S.B. Upadhay, Sr. Adv.
Mr. Matrugupta Mishra
Mr. Tushar Nagar

Counsel for the Respondent(s) : Mr. Venkatesh for R-1
Mr. M.G. Ramachandran
Ms. Anushree Bardhan
Ms. Poorva Saigal for R-2,R-3

ORDER

We are happy to note that the parties have settled the matter. Settlement terms duly singed by counsel for the Appellant, Respondent No. 3 and representative of Respondent No.2 the distribution company are taken on record. Settlement terms read as under:

> "1. The Appellant may lay down a dedicated transmission line with panther conductor from the Generating Station connecting to the 132 KV sub-station of Madhya Pradesh Power Transmission Company Limited.
>
> 2. The Energy accounting and adjustment will be as applicable under the relevant regulation.
>
> 3. The Appellant will not be required to pay any charges to the Distribution Company in regard to the operation of the dedicated transmission line.

4. The entire operation and maintenance of the dedicated transmission line shall be the right and responsibility of the Appellant."

The Appeal is disposed of in terms of the settlement terms.

(Rakesh Nath)
Technical Member

(Justice Ranjana P. Desai)
Chairperson

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